

Chhotelal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 25 November 2019 · Writ-C No. 38349 of 2019 · WRIT - C No. 38349 of 2019 · **Writ disposed of; relegated to Clause 6.5; coercive action stayed 40 days.**

HEADNOTE

A consumer disputing the correctness of an electricity bill must take the statutory objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The High Court declined to entertain a writ seeking mandamus to decide a representation on that dispute, directed the consumer to approach the appropriate authority within two weeks for a speaking decision within 30 days after hearing, and stayed coercive action for 40 days or until that decision, whichever was earlier, with the stay lapsing if the consumer did not approach in time.

FACTUAL SUMMARY

Chhotelal petitioned the Allahabad High Court for a mandamus directing respondent no. 3 to decide his representation dated 20 March 2019. He disputed the correctness of an electricity bill raised against him. Counsel for the petitioner and for the Electricity Department were heard. The Court did not examine the bill or the representation on merits, and treated the matter as one for the statutory billing-objection forum under the Supply Code.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correctness-statutory-objection

HOLDING

Where the consumer disputes the correctness of a bill, the High Court will not entertain a writ seeking mandamus to decide a representation on that dispute, because Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies the statutory remedy. If the consumer approaches the appropriate authority within two weeks, that authority is to consider and decide the application in accordance with law by a speaking order within 30 days of receiving a certified copy, after hearing the consumer. Coercive action is stayed for 40 days or until that decision, whichever is earlier; the stay lapses if the consumer does not approach within the stipulated period. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND THE REPRESENTATION DATED 20 MARCH 2019

Left to the Clause 6.5 authority; the writ was not decided on merits. ¶ 1